

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY			
Customer #:			
Trf from:			
Reviewer:		Initials	Date
Agent:			/ /
Chief:			/ /

To be completed by City/County Clerk		Local License #: <u>2</u>	
License Fees	Annual Fee: \$ <u>500.00</u>	Date filed with clerk: <u>3 / 8 / 2023</u>	
	Prorated Fee: \$ _____	Advertising Dates: (2 Weeks) <u>3-30</u> & <u>4-6-2023</u>	
	Transfer Fee: \$ _____	Hearing Date: <u>4 / 10 / 2023</u>	
	Publishing Fee: \$ <u>100.00</u>		
Publishing Fee Direct Billed to Applicant: ☐			
License Term: <u>upon issuance</u>		Through <u>3 / 31 / 24</u>	
	Month Day Year	Month Day Year	
LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.			
Applicant: <u>Brandon Erdmann / Virginia Erdmann The Blue Stem Wine House, LLC</u>			
Trade/Business Name (dba): <u>The Blue Stem Wine House, LLC</u>			
Building to be licensed/Building Address: <u>1909 Warren Ave</u>			
Number & Street			
<u>Cheyenne</u> <u>WY</u> <u>82001</u> <u>Laramie</u>			
City State Zip County			
Local Mailing Address: <u>Same</u>			
Number & Street or P.O. Box			
City State Zip			
Local Business Telephone Number: <u>(307) 575 2310</u> Fax Number: ()			
Business E-Mail Address: <u>Virginia@thebluestemwinehouse.com</u>			
FILING FOR		FILING IN (CHOOSE ONLY ONE)	
☒ NEW LICENSE		☒ CITY OF: <u>Cheyenne</u>	
☐ TRANSFER OF LOCATION		☐ COUNTY OF: _____	
☐ TRANSFER OWNERSHIP		☐ ASSIGNMENT LETTER ATTACHED	
FORMERLY HELD BY: _____			
FILING AS (CHOOSE ONLY ONE)			
☐ INDIVIDUAL			
☐ PARTNERSHIP			
☐ LP/LLP			
☒ LLC			
☐ CORPORATION			
☐ LTD PARTNERSHIP			
☐ ORGANIZATION			
☐ OTHER _____			
TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)			
RETAIL LIQUOR LICENSE		☐ RESTAURANT LIQUOR LICENSE	
☐ ON-PREMISE ONLY (BAR)		☐ RESORT LIQUOR LICENSE	
☐ OFF-PREMISE ONLY (PACKAGE STORE)		☐ BAR AND GRILL	
☐ COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE)		LIMITED RETAIL (CLUB)	
		☐ VETERANS CLUB	
		☐ FRATERNAL CLUB	
		☐ GOLF CLUB	
		☐ SOCIAL CLUB	
		☐ MICROBREWERY	
		☒ WINERY	
		☐ DISTILLERY SATELLITE	
		☐ WINERY SATELLITE	
		☐ COUNTY RETAIL/SPECIAL MALT BEVERAGE PERMIT	
SPECIAL DESIGNATIONS			
☐ CONVENTION FACILITY		☐ GOLF CLUB	
☐ CIVIC CENTER/EVENT CENTER/ PUBLIC AUDITORIUM		☐ RESORT	
		☐ GUEST RANCH	
To Assist the Liquor Division with scheduling inspections: OPERATIONAL STATUS			
☒ FULL TIME (e.g. Jan through Dec)		(specify months of operation) from <u>Jan</u> to <u>Dec</u>	
☐ SEASONAL/PART-TIME		DAYS OF WEEK (e.g. Mon through Sat) from <u>Tues</u> to <u>Sun</u>	
☐ NON-OPERATIONAL/PARKED		HOURS OF OPERATION (e.g. 10a - 2a) from <u>12:00p</u> to <u>10:00p</u>	

ALL APPLICANTS MUST COMPLETE QUESTIONS 1- 4

1. **BUILDING OWNERSHIP:** Does the applicant? W.S. 12-4-103(a)(iii)
- (a) **OWN** the licensed building? ☒ YES (own)
- (b) **LEASE** the licensed building? (Lease must be through the term of the liquor license) ☐ YES (lease)
- If Yes, please submit a copy of the lease and indicate:
- (i) When the lease expires, located on page _____ paragraph _____ of lease.
- (ii) Where the **Sales** provision for alcoholic or malt beverages is located, on page _____ paragraph _____ of lease.
- (MUST contain a provision for SALE OF ALCOHOLIC or MALT BEVERAGES.)
2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601(b) ☐ YES ☒ NO
3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered **YES** to any of the above, explain fully and submit any documents in connection there within:
- _____
4. Does the **applicant** have any interest or intent to acquire an interest in any other liquor license issued by **this** licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO
- If "YES", explain: _____

5. **BAR AND GRILL LICENSE OR RESTAURANT LICENSE:**

Have you submitted a valid food service permit or application? W.S. 12-4-413(a) ☐ YES ☐ NO

6. **RESORT LICENSE:**

- Does the resort complex:
- (a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
- (d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO
- (e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)
1. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

7. **MICROBREWERY LICENSE:**

- Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO
- (a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT
- ☐ BAR AND GRILL ☐ WINERY
- (b) Do you self distribute your products? W.S. 12-2-201(a) ☐ YES ☐ NO
- (Requires wholesale malt beverage license with the Liquor Division)

8. **WINERY LICENSE:**

- Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☒ NO
- (a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT
- ☐ BAR AND GRILL ☐ MICROBREWERY

9. LIMITED RETAIL (CLUB) LICENSE:

FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LICENSE:

VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LICENSE:

GOLF CLUBS W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO
- (c) Are you a political subdivision of the state that owns, maintains, or operates a golf course? ☐ YES ☐ NO
 - 1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g) ☐ YES ☐ NO
 - 2. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LICENSE:

SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E)/W.S. 12-4-301(b):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as Recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition Attached) ☐ YES ☐ NO

13. If applicant is filing as an Individual, Partnership or Club: W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or club officer must complete the box below.

See Section 14 (LIC)

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
Brandon Erdman	3-12-70	3133 White Cloud Rd Cheyenne, WY 82001	307-760-7579	YES ☒ NO ☐	YES ☐ NO ☒	YES ☐ NO ☒
Virginia Erdmann	4-12-73	3133 White Cloud Rd Cheyenne, WY 82001	307-575-2310	YES ☒ NO ☐	YES ☐ NO ☒	YES ☐ NO ☒
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

14. If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	No. of Years in Corp or LLC	% of Corpora te Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
Brandon Erdmann	3-26-70	3133 White Cloud Rd Cheyenne, WY 82001	307-760- 7579	2	50	YES ☐ NO ☒	YES ☐ NO ☒
Virginia Erdmann	4-12- 73	3133 White Cloud Rd Cheyenne, WY 82001	307- 575- 2310	2	50	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application)

REQUIRED ATTACHMENTS:

- ☒ A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102(a)(vi).
- ☐ Attach any lease agreements (especially for resort/political subdivisions leasing out food & beverage services) W.S. 12-4-103 (a)(iii)/W.S. 12-4-403(b)/W.S. 12-4-301(e).
- ☐ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601(b).

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

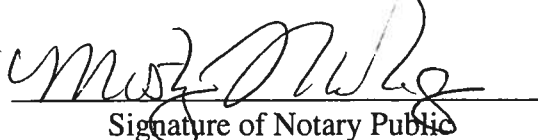
*Under penalty of perjury, and the possible revocation or cancellation of the license,
I swear the above stated facts, are true and accurate.*

STATE OF WYOMING)
COUNTY OF Laramie) SS.

Signed and sworn to before me on this 18 day of October, 2022 that the facts alleged in the foregoing instrument are true by the following:

1)	 (Signature)	<u>Brandon Erdmann</u> (Printed Name)	<u>member</u> Title
2)	<u>Virginia Erdmann</u> (Signature)	<u>Virginia Erdmann</u> (Printed Name)	<u>President</u> Title
3)	 (Signature)	 (Printed Name)	 Title
4)	 (Signature)	 (Printed Name)	 Title
5)	 (Signature)	 (Printed Name)	 Title
6)	 (Signature)	 (Printed Name)	 Title

Witness my hand and official seal.
MISTY L. MOBERG - NOTARY PUBLIC
County of Laramie State of Wyoming
My Commission Expires March 19, 2023


Signature of Notary Public

DEPARTMENT OF THE TREASURY – ALCOHOL AND TOBACCO TAX AND TRADE BUREAU

BASIC PERMIT

(Under Federal Alcohol Administration Act)

5. NAME AND ADDRESS OF PERMITTEE (Number and street, city or town, State and Zip Code)

THE BLUE STEM WINE HOUSE, LLC

1909 WARREN AVE
CHEYENNE, WY 82001

1. PERMIT NUMBER

WY-W-21010

2. DATE OF PERMIT

02/11/2022

3. REGISTRY NUMBER (if applicable)

BWN-WY-21010

4. DATE OF APPLICATION

01/11/2022

6. TRADE NAMES AUTHORIZED BY THIS PERMIT (Trade name approval does not constitute approval as a brand name for labeling purposes. If needed, list on reverse or use continuation sheet.)



7. PERMIT GRANTED FOR (ONE TYPE OF OPERATION ONLY)

Pursuant to the application of the date indicated in item 4, you are authorized and permitted to engage, at the above address, in the business of:

- a. ☐ Distilled Spirits - ☐ distiller ☐ rectifier (processor) ☐ warehouseman and/or ☐ warehouseman and bottler and while so engaged, to sell, offer or deliver for sale, contract to sell or ship, in interstate or foreign commerce, the distilled spirits so distilled or rectified, or warehoused and bottled, or the wines so rectified
- b. ☒ Wine - ☒ producer and blender ☐ blender and while so engaged, to sell, offer or deliver for sale, contract to sell or ship, in interstate or foreign commerce, the wine so produced or blended.
- c. ☐ Importer - importing into the United States the following alcoholic beverages:
while so engaged, to sell, offer to deliver for sale, contract to sell or ship, in interstate or foreign commerce, the alcoholic beverages so imported.
- d. ☐ Wholesaler - Purchasing for resale at wholesale the following alcoholic beverages:
while so engaged, to receive or to sell, offer or deliver for sale, contract to sell or ship, in interstate or foreign commerce, the alcoholic beverages so Purchased.

This Permit is conditioned upon your compliance with the Federal Alcohol Administration Act; the Twenty-first Amendment and laws relating to its enforcement; all other Federal laws relating to distilled spirits, wine, and malt beverages, including taxes with respect to them; the Federal Water Pollution Control Act; and, all applicable regulations made pursuant to law which are now, or may hereafter be, in force.

This basic permit is effective from the date shown above and will remain in force until suspended, revoked, annulled, voluntarily surrendered, or automatically terminated.

THIS PERMIT WILL AUTOMATICALLY TERMINATE THIRTY DAYS AFTER ANY CHANGE IN PROPRIETORSHIP OR CONTROL OF THE BUSINESS, unless an application for a new basic permit is made by the transferee or permittee within the thirty day period. If an application for a new basic permit is timely filed, the outstanding basic permit will continue in effect until the application is acted on by the District Director, Alcohol and Tobacco Tax and Trade Bureau.

THIS PERMIT IS NOT TRANSFERABLE. ANY CHANGE IN THE TRADE NAME, CORPORATE NAME, MANAGEMENT OR ADDRESS OF THE BUSINESS COVERED BY THIS PERMIT, OR ANY CHANGE IN STOCK OWNERSHIP (MORE THAN 10%) MUST BE REPORTED TO THE NATIONAL REVENUE CENTER OR PUERTO RICO FIELD OFFICE WITHOUT DELAY.

THIS IS AN ☒ ORIGINAL PERMIT☐ AMENDED PERMIT

REASON FOR AMENDMENT

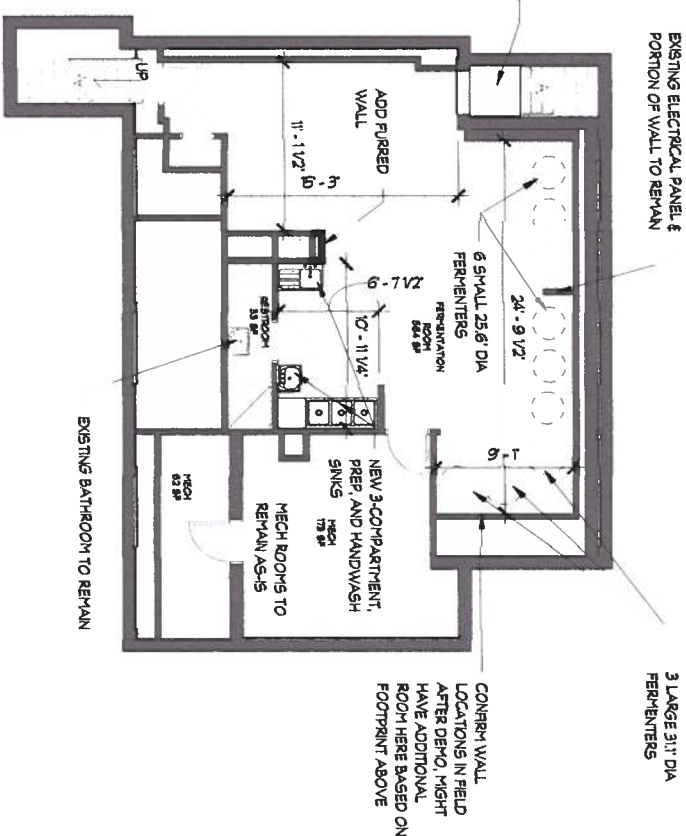
DATE OF AMENDMENT

SIGNATURE AND TITLE OF AUTHORIZED TTB OFFICIAL

Jina Betach Specialist



2 BASEMENT FLOOR PROPOSED PLAN
P02 1/8" = 1'-0"



Avond
High School

THIS DRAWING MAY NOT BE
PHOTOCOPIED, REPRODUCED, TRACED
OR COPIED IN ANY MANNER WITHOUT
THE WRITTEN PERMISSION OF
NAYONA ARCHITECTURAL LLC.

P102

THE BLUE STEM WINE HOUSE, LLC
1909 WARREN AVENUE
CHEYENNE, WY 82001
307-575-2310

Mayor Patrick Collins
2101 O'Neil Avenue
Cheyenne, WY 82001

November 19, 2022

Dear Mayor Collins and Cheyenne City Council Members:

Please accept this letter of introduction on behalf of The Blue Stem Wine House, LLC (The Blue Stem) as outlined as a requirement of new liquor license applicants. We sincerely appreciate the opportunity to share our vision with you.

The Blue Stem is a boutique winery located at 1909 Warren Avenue in a 110-year-old building currently undergoing extensive renovation by TCI Solutions to ensure the structure complies with commercial requirements while simultaneously maintaining the integrity of the original Edwardian Era home. Fermenting will take place in the basement while the main floor will house a seating area for tasting and charcuterie.

The idea to offer Cheyenne a downtown winery began several years ago and we are nearing the culmination of this physical, emotional, and financial effort to provide a space for conversation, small groups, musical entertainment, and those simply seeking a brief respite amidst daily life. Our vision includes private educational tasting events and wine parings, take out sales, a wine club, and online orders. Most importantly, however, is our intent to give back to the community through supporting local charities and offering a space for nurturing philanthropic endeavors as well as cultivating interpersonal relationships.

We thank you in advance for your support of our interest in creating a unique space in the greater community of Cheyenne and your endorsement of our winery permit application.

Sincerely,



Virginia Erdmann



Brandon Erdmann

STATE OF WYOMING
Office of the Secretary of State

I, EDWARD A. BUCHANAN, Secretary of State of the State of Wyoming, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF ORGANIZATION

The Blue Stem Wine House, LLC

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this **6th** day of **November, 2020** at **7:00 PM**.

Remainder intentionally left blank.



Filed Date: 11/06/2020

Edward A. Buchanan
Secretary of State

Filed Online By:
Virginia Clark
on 11/06/2020

**THE BLUE STEM WINE HOUSE, LLC
1909 WARREN AVENUE
CHEYENNE, WY 82001
307-575-2310**

October 18, 2022

MEMORANDUM FOR: Cheyenne City Clerk, 2101 O'Neil Ave., Cheyenne, WY 82001

SUBJECT: Proposed Alcohol Training Program

- 1) This memorandum serves to meet the information requirement concerning a proposed alcohol training program as identified on the new liquor license applicant checklist provided by the Cheyenne City Clerk.
- 2) In accordance with the Wyoming Liquor Division, all Blue Stem owners and employees will complete one of the approved alcohol served education courses (as linked in the Wyoming Liquor Division website) prior to serving wine on site.
- 3) Completion of one of the approved courses is intended to meet the Wyoming Department of Revenue, Chapter 20 (Liquor Division Methodology), Section 17 requirement of four hours training and remain valid for three years.
- 3) Certificates of course completion will be maintained on file and made available for inspection purposes by authorized personnel as outlined in Cheyenne Municipal Code 5.12.90 (Ord. No. 4186, § 1, 6-26-17).
- 4) Questions, requests for further information, or clarification concerning the proposed program may be directed to the undersigned at 307-760-7579 or brandon@thebluestemwinehouse.com.



Brandon Erdmann

Blue Stem Member
